BRENDAN NGEHSI NEWANFORBI

Plaintiff In Pro Per

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SACRAMENTO

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **KEELY DODD, in her individual capacity; GARY NOGUCHI, in his individual capacity; JOSEELYN ROJO, in her individual capacity; CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION; and DOES 1 through 20, inclusive,** Defendants.	Case No. _____ **VERIFIED COMPLAINT FOR DAMAGES AND DECLARATORY RELIEF** (1) Breach of Mandatory Duty (Gov. Code §§ 815.2, 815.6); (2) False Imprisonment; (3) Intentional Infliction of Emotional Distress; (4) Negligence; (5) Declaratory Relief (Code Civ. Proc. § 1060) *[Unlimited Civil — Exceeds $25,000]* *[Trial by Court — Jury Waived]*

INTRODUCTION

1. This is an action for damages and declaratory relief arising from the unlawful retention of Plaintiff BRENDAN NGEHSI NEWANFORBI on California parole after a legally void discharge review process. On November 14, 2025, a CDCR/DAPO Parole Agent assigned to the Stockton 2 GPS Parole Unit (Parole Agent Long Moua, Badge #7472, sued herein as a non-party actor, not as a defendant) authored a CDCR Form 1502-DR Discharge Review Report that, on its face, (a) applied mutually exclusive statutory parole-term frameworks, (b) relied on a non-existent "6.5 years of supervision" eligibility rule, (c) applied a non-existent "10-year parole term" exclusion attributed to an internal "Policy 19-03," (d) omitted every mandatory

Containment Team Meeting finding and CDCR Form 3043 documentation required by Title 15, California Code of Regulations section 3574, and (e) was used to deny discharge without any written good-cause determination. On November 19, 2025, Unit Supervisor Defendant GARY NOGUCHI reviewed and ratified the report; his written comments refer by name to a different parolee ("Eagan")—documentary proof that no individualized review occurred. On November 19, 2025, Parole Administrator Defendant KEELY DODD electronically signed the report as the final approving authority and thereby converted a facially defective field recommendation into binding administrative action denying discharge. The Agent of Record as of that date, Defendant JOSEELYN ROJO, never served the finalized report on Plaintiff; the fields on page 5 captioned "Parolee Provided Copy (Date)," "Mailed By Initials," and "Delivered By Initials" are blank.

2. Plaintiff had been eligible for discharge from parole since December 2, 2021—one year after his release to parole on December 2, 2020. (Pen. Code § 3001(a)(2).) On information and belief, no good-cause retention finding by the Board of Parole Hearings under Penal Code section 3001(a)(2) has been articulated, documented, served on Plaintiff, or otherwise provided to him on request. The statewide policies and practices that drove this result—including CDCR's continued insistence that sex-offender-management-program participation must continue through the entire parole term—were judicially condemned in In re Dwyer, San Mateo County Super. Ct. Case No. SC-080355A, HC-3020 (Mar. 20, 2023), survived demurrer in Alliance for Constitutional Sex Offense Laws v. Macomber, L.A. Co. Super. Ct. Case No. 23STCP02378 (Dec. 2023), and were formally repudiated by the April 17, 2025 amendments to 15 C.C.R. § 3574. Those amendments expressly provide that "supervised persons may complete a sex offender management program before discharge from parole, as contemplated by Pen. Code section 3008(d)." Defendants applied the pre-amendment framework to Plaintiff anyway.

3. Two distinct wrongful-conduct theories underlie this complaint. **First,** CDCR has, on information and belief, continuously failed since December 2, 2021 to perform the discharge determination mandated by Penal Code section 3001(a)(2). Each day of that continuing failure is

a separately actionable breach of mandatory duty under Government Code section 815.6. This continuing-breach theory supports Plaintiff's First Cause of Action against CDCR, and it supports the economic damages arising from Plaintiff's continued parole supervision before November 19, 2025, including the lost-wages losses for 2022 through 2024. **Second,** for purposes of the tort causes of action (False Imprisonment, Intentional Infliction of Emotional Distress, and Negligence) pleaded against the named individual Defendants, the discrete, final, and operative act that gives rise to those tort claims is Defendant Dodd's November 19, 2025 approval of the defective CDCR Form 1502-DR. Each day of continued parole supervision after November 19, 2025 constitutes a separately actionable day of unlawful custodial restraint for purposes of those tort counts. Every restraint imposed on Plaintiff after November 19, 2025—including 24-hour-per-day Global Positioning System ("GPS") monitoring, curfew, geographic restrictions, mandatory sex-offender treatment consuming six to eight hours per week, warrantless searches, restrictions on association, and the constant threat of reincarceration—is unauthorized because it rests on a review conducted through a noncompliant process, without a properly documented individualized good-cause determination, and without service.

4. Plaintiff seeks: (a) compensatory economic damages, including documented lost-wages losses of not less than $109,408 for 2022 through 2024 and continuing lost-wages losses of approximately $6,000 per month, attributable to CDCR's breach of its mandatory duties to discharge Plaintiff after December 2, 2021; (b) loss-of-liberty damages from November 19, 2025 forward, at a per-diem rate not less than $100 per day in light of the restrictions imposed on Plaintiff, according to proof; (c) out-of-pocket compliance costs; (d) non-economic damages for severe emotional distress, humiliation, and reputational harm; (e) punitive and exemplary damages against the named individual Defendants under Civil Code section 3294; and (f) a judicial declaration that the November 19, 2025 discharge-review determination is void as a matter of law and that Plaintiff is entitled to discharge unless and until a discharge review is lawfully conducted and a valid good-cause retention finding is entered by the Board of Parole Hearings.

SUMMARY OF CLAIMS

5. **Scope of this action.** Plaintiff does not in this action challenge the underlying 2018 judgment of conviction, his 2020 release to parole, or the existence of any original parole term. This action challenges only (a) the November 2025 discharge-review determination reflected in the CDCR Form 1502-DR attached as Exhibit A, (b) CDCR's continuing failure, since the December 2, 2021 statutory one-year threshold, to perform the discharge-review procedures mandated by Penal Code section 3001(a)(2) and Title 15, California Code of Regulations section 3574, and (c) the continuing effects of the unlawful retention on Plaintiff's liberty, economic interests, and emotional well-being from November 19, 2025 forward. Within that scope, Plaintiff alleges five causes of action:

(i) Breach of Mandatory Duty (Gov. Code §§ 815.2, 815.6) — CDCR failed to perform the mandatory discharge-review procedures required by Penal Code sections 3000, 3001, and 3008, and by Title 15, California Code of Regulations section 3574, before retaining Plaintiff after the December 2, 2021 one-year threshold and before the November 19, 2025 denial of discharge. CDCR also bears vicarious liability under Government Code section 815.2(a) for the acts and omissions of its supervisory employees and of non-party Parole Agent Long Moua, the authoring agent;

(ii) False Imprisonment — the named individual Defendants caused and are causing Plaintiff's continued custodial restraint without lawful privilege, by ratifying and approving a review that applied fabricated eligibility rules, misidentified Plaintiff by another parolee's name, omitted mandatory findings and documentation, and failed to serve the decision on him;

(iii) Intentional Infliction of Emotional Distress — the named individual

Defendants' extreme and outrageous conduct in approving and ratifying a discharge denial that on its face identifies a different human being, and in continuing custodial restraint on that basis, caused severe emotional distress;

(iv) Negligence — each named individual Defendant breached ministerial duties imposed by statute and regulation; and

(v) Declaratory Relief — the November 19, 2025 discharge-review determination is void, and Plaintiff is entitled to a judicial declaration to that effect and to the concomitant determination that his continued parole supervision is unauthorized.

PARTIES

6. Plaintiff BRENDAN NGEHSI NEWANFORBI is a natural person residing in Stockton, San Joaquin County, California. He is supervised under CDCR's Division of Adult Parole Operations ("DAPO"), Stockton 2 GPS Parole Unit, Region N. He holds a valid Class A Commercial Driver's License ("CDL") and, but for Defendants' conduct, possesses the skills and authorization to earn approximately $72,000 per year as a journeyman CDL truck driver. (Exhibit E.)

7. Defendant KEELY DODD (Badge #6462) is a Parole Administrator employed by CDCR/DAPO. On information and belief, Dodd's principal office and duty station are located at the DAPO Northern Region Headquarters in Sacramento County. Dodd was the final approving official whose electronic signature on Plaintiff's CDCR Form 1502-DR on November 19, 2025 converted subordinate field recommendations into binding administrative action denying discharge. The report Dodd signed contained, on its face: the "Eagan" misidentification by her subordinate Noguchi; reliance on a "6.5 years of supervision" rule that appears nowhere in any statute or regulation; application of a "10-year parole term" exclusion attributed to an internal

"Policy 19-03" that is nowhere published; a "Case Type: PC3000(b)(5)(B)" classification that is irreconcilable with the "10-year parole term" narrative; no CDCR Form 3043 attached; no treatment provider signature; and a blank service page. Notwithstanding those facial defects, Dodd elected the "Review/Decision" option, approved "Discharge Denied/No Action," and wrote: "Concur with the Unit Supervisor, continued parole supervision is warranted and recommended at this time." Dodd possessed the authority to reject, correct, or remand the defective report and elected not to exercise it. On information and belief, as the Northern Region Parole Administrator responsible for SOMP-category cases, Dodd had actual or constructive knowledge of the April 17, 2025 amendments to 15 C.C.R. § 3574 and of Dwyer and Macomber. Dodd is sued individually for all causes of action pursuant to Government Code section 820(a).

8. **Non-Party Authoring Agent — Parole Agent Long Moua.** The CDCR Form 1502-DR Discharge Review Report dated November 14, 2025, which forms the factual predicate of this action, was prepared by Parole Agent Long Moua (Badge #7472), a CDCR/DAPO employee assigned to the Stockton 2 GPS Parole Unit. Plaintiff has identified the authoring agent but elects not to name him as a defendant in this action. Agent Moua is referenced herein solely as a non-party whose acts are relevant to establish the factual predicate for the supervisory and administrative failures of the named Defendants. The report as authored contains multiple material defects—including (a) the invocation of a non-existent "6.5 years of supervision" eligibility rule (an underground regulation prohibited by Government Code section 11340.5); (b) the application of a non-existent "Policy 19-03" "10-year parole term" exclusion; (c) the simultaneous application of mutually exclusive statutory parole-term frameworks (a "Case Type: PC3000(b)(5)(B)" classification alongside a "10-year parole term" narrative); (d) internally contradictory treatment-compliance characterizations; (e) a failure to aggregate the form's mandatory objective scoring; (f) omission of all mandatory Containment Team Meeting ("CTM") documentation and of CDCR Form 3043 (Rev. 11/24); and (g) use of the obsolete CDCR Form 1502-DR (Rev. 01/22). Each defect is detailed in paragraphs 30 through 35 below. All of these defects were ratified by Defendant Noguchi on November 19, 2025 and approved by Defendant

Dodd on November 19, 2025. Defendant CDCR bears vicarious liability under Government Code section 815.2(a) for Agent Moua's acts and omissions within the course and scope of his employment.

9. Defendant GARY NOGUCHI (Badge #7284) is a Unit Supervisor employed by CDCR/DAPO. Supervisor Noguchi reviewed and ratified the report on November 19, 2025. His written comments contain the following verbatim sentence: "Eagan has only completed approximately 4 years of the required 6.5 years of supervision." The word "Eagan" refers to a different human being. Noguchi also reported his own risk assessment of Plaintiff as "Stable 6/LSCMI 5," placing Plaintiff at a Level 2 below-average risk, while simultaneously endorsing retention on parole, and commended Plaintiff for "maintaining compliance with parole supervision" in the same document that characterized him as non-compliant for retention purposes. Those facts, together with the "Eagan" reference, show that the review was not the product of an individualized analysis of Plaintiff's circumstances. Noguchi is sued individually for all causes of action.

10. Defendant JOSEELYN ROJO is a Parole Agent employed by CDCR/DAPO who, as of November 19, 2025, was the Agent of Record responsible for serving the finalized discharge-review report on Plaintiff. She did not do so. Page 5 of the CDCR Form 1502-DR attached as Exhibit A reflects that the "Parolee Provided Copy (Date)," "Mailed By Initials," and "Delivered By Initials" fields are all blank. The 1502-DR's own "DISTRIBUTION" instruction at the footer of every page ("Original to C-File; Copy to Field File; Copy to Parolee") identifies Plaintiff as a required recipient. Rojo's failure to serve deprived Plaintiff of any opportunity to challenge the adverse decision through administrative or judicial channels within the applicable time limitations and perpetuated the unlawful restraint while concealing its existence from the person most harmed by it. Rojo is sued individually for all causes of action.

11. Defendant CALIFORNIA DEPARTMENT OF CORRECTIONS AND

REHABILITATION ("CDCR") is a department of the State of California with headquarters in Sacramento County. CDCR is vicariously liable under Government Code section 815.2(a) for injuries proximately caused by the acts and omissions of Defendants Dodd, Noguchi, and Rojo, of non-party Parole Agent Long Moua, and of Does 1 through 20, each acting within the scope of employment. CDCR is directly liable under Government Code section 815.6 for breach of the mandatory duties imposed by Penal Code section 3001(a)(2) and Title 15, California Code of Regulations section 3574, which were designed to protect against the particular kind of injury Plaintiff suffered: continued parole supervision without lawful authority.

12. Defendants DOES 1 through 20 are sued under fictitious names pursuant to Code of Civil Procedure section 474. The Doe Defendants do not include non-party Parole Agent Long Moua, whose conduct is addressed in paragraph 8 above and for whom CDCR bears vicarious liability under Government Code section 815.2(a). Plaintiff is informed and believes that each Doe Defendant participated in one or more of the following acts: reviewing, approving, or enforcing the November 2025 discharge-review determination; authoring or promulgating at an institutional level the underground "6.5 years of supervision" rule or the non-existent "Policy 19-03" "10-year parole term" exclusion; failing to implement the April 17, 2025 amendments to 15 C.C.R. § 3574 in Plaintiff's case; or failing to serve the decision on Plaintiff. Plaintiff will amend to allege their true names and capacities when ascertained.

13. At all relevant times, each individual Defendant acted within the course and scope of employment with CDCR. The individual Defendants are sued in their individual capacities under Government Code section 820(a).

JURISDICTION AND VENUE

14. This Court has subject-matter jurisdiction under Article VI, section 10 of the California Constitution and Code of Civil Procedure section 410.10. The amount in controversy

exceeds $25,000, making this an unlimited civil case.

15. Venue is proper in Sacramento County under Code of Civil Procedure section 393(b), which provides that an action against a public officer for an act done by the officer in virtue of his or her office may be tried in the county where the cause, or some part of it, arose. The final operative act giving rise to this action—Parole Administrator Dodd's November 19, 2025 electronic ratification of the CDCR Form 1502-DR—was performed, on information and belief, from DAPO Northern Region Headquarters in Sacramento County. Venue is additionally proper under Code of Civil Procedure section 395(a) because Defendant Dodd's office is in Sacramento County and, for venue purposes in actions against a state department, CDCR resides in Sacramento County, which is its headquarters.

16. This Court has authority to issue declaratory relief under Code of Civil Procedure section 1060.

COMPLIANCE WITH THE GOVERNMENT CLAIMS ACT

17. On April 23, 2026, Plaintiff presented a government tort claim arising out of the facts alleged herein to the California Government Claims Program, the designated state claims entity for claims against CDCR. (Gov. Code §§ 900–915.4, 915(b).) The Government Claims Program processed the $25.00 filing fee payment on April 23, 2026 (Confirmation Number 26042324436661) and accepted the claim for filing. A true and correct copy of the presented claim and the fee-payment receipt are attached as Exhibit F.

18. The California Government Claims Program did not act on Plaintiff's claim within 45 days of presentation. (Gov. Code § 912.4(a).) No written notice of any action on the claim was issued or received. (Gov. Code § 913.) Plaintiff's claim is therefore deemed rejected by operation of law as of June 7, 2026, the forty-fifth day following presentation. (Gov. Code § 912.4(c).)

19. This action is timely filed within two years after the accrual of the causes of action pleaded herein. Because no written notice of rejection was ever given to Plaintiff, the two-year limitations period under Government Code section 945.6(a)(2) applies. All causes of action pleaded herein were presented in the April 23, 2026 government tort claim, and the damages and relief sought in this complaint are substantially consistent with the claim as presented.

TIMELINESS

20. Each cause of action is timely:

a. Breach of Mandatory Duty (Gov. Code § 815.6): Two years from accrual under Code of Civil Procedure section 335.1, subject to the continuing-accrual doctrine recognized in Aryeh v. Canon Business Solutions, Inc. (2013) 55 Cal.4th 1185, 1197–1201. The November 19, 2025 approval is within two years of filing, and each subsequent day of continued unlawful supervision constitutes a new breach giving rise to new damages.

b. False Imprisonment (Code Civ. Proc. § 340(c)): One year from accrual, subject to the continuing-tort doctrine. False imprisonment is a continuing tort while the restraint endures. (See Watts v. Johnson (2018) 27 Cal.App.5th 734, 744 [continuing tort; limitations period does not run until the imprisonment ends]; Gressett v. Superior Court (2010) 185 Cal.App.4th 114, 124–125.) Plaintiff is still restrained as of the filing date; all damages within one year of filing are timely, and each day of continued restraint from November 19, 2025 onward is separately actionable.

c. Intentional Infliction of Emotional Distress (Code Civ. Proc. § 335.1): Two years, subject to the same continuing-accrual analysis.

d. Negligence (Code Civ. Proc. § 335.1): Two years, subject to the same continuing-accrual analysis.

e. Declaratory Relief (Code Civ. Proc. § 1060): Timely while the underlying controversy persists and damages continue to accrue.

STATUTORY AND REGULATORY FRAMEWORK

21. **Penal Code section 3001(a)(2) mandates discharge after one year.** Penal Code section 3001(a)(2) provides that a person required to register under Penal Code section 290 who has been on parole continuously for one year "shall be discharged" unless the supervising agency recommends retention and the Board of Parole Hearings, "for good cause, determines that the person will be retained on parole." The Legislature's use of the word "shall" imposes a mandatory, not discretionary, duty. (See Haggis v. City of Los Angeles (2000) 22 Cal.4th 490, 498–499 ["shall" is ordinarily mandatory for purposes of Government Code section 815.6].)

22. **Penal Code section 3008(d) requires individualized treatment determinations.** Penal Code section 3008(d) authorizes sex-offender-management-program participation as part of parole supervision but does not authorize retention for the entire term of parole as a matter of blanket policy. In In re Dwyer, San Mateo Super. Ct. Case No. SC-080355A/HC-3020 (Mar. 20, 2023) (Exh. B), the court held that CDCR's policy of retaining all registrants in a management program "for the entire term of parole, apparently without reference to the individualized performance of each parolee," vitiates the Legislature's directive.

23. **Title 15, California Code of Regulations section 3574 specifies the required procedure and documentation.** Section 3574, as amended effective April 17, 2025 and made permanent by the Office of Administrative Law's Notice of Approval of Certificate of

Compliance, OAL Matter No. 2025-0321-01, effective April 28, 2025 (Exh. D), requires that, before CDCR may recommend retention on parole of a sex-offender registrant beyond the one-year threshold, it shall: (a) convene a Containment Team Meeting ("CTM") at specified intervals under subdivision (e); (b) prepare and execute a CDCR Form 3043 (Rev. 11/24) documenting the CTM and any earned-discharge-consideration findings, and deliver the completed Form 3043 within 30 calendar days of the CTM; (c) obtain a treatment-provider signature where required; (d) articulate a written, individualized "good cause" determination under subdivision (f) tied to documented risk assessment, not to blanket noncompletion of treatment; and (e) serve the decision on the supervised person. Section 3574(f)(1), as amended, expressly provides that treatment completion and parole discharge are "legally separate decisions," displacing the prior practice—condemned in Dwyer—that tethered discharge to treatment completion as an automatic matter. The amendments also expressly provide that "supervised persons may complete a sex offender management program before discharge from parole, as contemplated by Pen. Code section 3008(d)."

24. **Government Code sections 815.2, 815.6, and 820(a) govern liability.** Government Code section 815.6 makes a public entity liable for its breach of a mandatory duty imposed by an enactment designed to protect against the kind of injury suffered, unless the entity exercised reasonable diligence. Government Code section 815.2(a) makes a public entity vicariously liable for the injuries an employee causes within the scope of employment. Government Code section 820(a) makes public employees personally liable to the same extent as private persons for injuries caused by their acts or omissions. Discretionary immunity under Government Code section 820.2 is unavailable where, as here, the duties breached are ministerial—i.e., the statutes and regulations use mandatory "shall" language, specify the precise conditions of discharge, and leave no room for policy judgment once those conditions are met. (Kavanaugh v. West Sonoma County Union High School Dist. (2003) 29 Cal.4th 911, 916 [discretionary immunity does not apply to ministerial acts].) Government Code section 820.4 does not exonerate a public employee from liability for false arrest or false imprisonment.

GENERAL ALLEGATIONS

A. Plaintiff's Parole Status, Employment Capacity, and Treatment History

25. Plaintiff was released on parole on December 2, 2020. His Controlling Discharge Date is December 2, 2030. He is required to register under Penal Code sections 290 through 290.023 and participates in the SOMP mandated by Penal Code section 3008(d). His supervision category is "SA" (Sex Offender Active); his CSRA score is 2 (Moderate); his Static-99R score reported in the 1502-DR is 4. He is supervised by the Stockton 2 GPS Parole Unit, Region N.

26. As of December 2, 2021, Plaintiff had been on parole continuously for one year and was entitled to discharge under Penal Code section 3001(a)(2) unless and until CDCR recommended retention and the Board of Parole Hearings, for good cause, determined that he would be retained on parole. No such good-cause determination by the Board has ever been articulated, documented, served on Plaintiff, or (on information and belief) made at all. As of November 19, 2025, Plaintiff had been on parole continuously for nearly five years.

27. Plaintiff is a qualified journeyman Class A CDL truck driver. The Centerline Drivers Wage Notice dated October 30, 2024 (Exh. E) confirms his qualification and a regular hourly rate of $33.35 with premium rate of $50.03 for CDL work. At that scale, Plaintiff's but-for earning capacity is not less than $72,000 per year. Typical journeyman CDL positions require multi-day, long-haul routes that are categorically incompatible with the GPS, curfew, geographic-restriction, and multi-session-per-week treatment-attendance obligations imposed on Plaintiff as a condition of continued parole. Plaintiff's W-2 records reflect lost CDL wages of not less than $109,408 for the years 2022 through 2024 alone, measured against that $72,000 annual but-for earning capacity; losses continue to accrue at approximately $6,000 per month for each month Plaintiff remains unable to pursue unrestricted CDL employment as a direct result of CDCR's continued

unlawful retention and the defective November 2025 discharge determination.

28. Plaintiff has participated in the HOPE Psychotherapy, Inc. ("HOPE") treatment program continuously since May 2021. During that period, he has been assigned to approximately nine different clinicians due to HOPE's documented staff turnover—a pattern that has destroyed continuity of care, caused lost records and homework, and forced repeated phase restarts. Despite those systemic disruptions, Plaintiff has advanced to Core Phase, Block 1, Module 4 of 7 and has maintained compliance with HOPE's participation requirements. HOPE has never certified Plaintiff as having "completed" treatment. That non-completion characterization is not an individualized clinical judgment; it is the automatic output of HOPE's blanket policy, adopted pursuant to CDCR practice, under which no parolee can "complete" treatment prior to discharge from parole. This structurally impossible standard was judicially condemned in In re Dwyer (Exh. B) and was formally repudiated by the April 17, 2025 amendments to 15 C.C.R. § 3574, as made permanent by the Office of Administrative Law, OAL Matter No. 2025-0321-01, effective April 28, 2025 (Exh. D).

B. The November 2025 Discharge Review: Documentary Defects

29. A true and correct copy of the CDCR Form 1502-DR Discharge Review Report dated November 14, 2025, as ratified by Noguchi on November 19, 2025 and signed by Dodd on November 19, 2025, is attached as Exhibit A. Every defect identified in paragraphs 30 through 35 is visible on the face of Exhibit A without reference to any extrinsic evidence.

30. **Mutually exclusive parole-term frameworks.** Section I of Exhibit A identifies "Case Type: PC3000(b)(5)(B)." Penal Code section 3000(b)(5)(B) prescribes a parole term with a statutory range of three to five years, extendable by statute as specified therein. The narrative explanation in the report, however, invokes a "10-year parole term" to justify ineligibility. These two frameworks cannot coherently apply to the same individual. The report nowhere reconciles

them.

31. **The fabricated "6.5 years of supervision" rule.** Section II of Exhibit A contains a supervisor-comment sentence reading: "Eagan has only completed approximately 4 years of the required 6.5 years of supervision." No statute, regulation, CDCR Operations Manual provision, or formally adopted policy imposes a 6.5-year minimum parole-supervision period before a sex-offender registrant may be considered for discharge under Penal Code section 3001(a)(2). A purported rule not adopted pursuant to the California Administrative Procedure Act is an "underground regulation," prohibited by Government Code section 11340.5.

32. **The "Policy 19-03" "10-year parole term" exclusion.** The report also invokes an internal "Policy 19-03" as the source of an eligibility rule excluding "10-year parole terms" from discharge consideration. On information and belief, no published version of CDCR Policy 19-03 contains a categorical exclusion of "10-year parole terms" from discharge consideration, and no such exclusion has been adopted as a regulation under the California Administrative Procedure Act. Any rule of general application that is enforced without adoption pursuant to the Administrative Procedure Act is an underground regulation prohibited by Government Code section 11340.5. The exclusion relied upon in the report also conflicts with Penal Code section 3001(a)(2), which directs discharge after one year absent an individualized good-cause retention finding.

33. **The "Eagan" misidentification.** The verbatim sentence quoted in paragraph 31 above identifies "Eagan"—a different parolee—rather than Plaintiff. This is not a one-letter typographical error; it is a reference to a different human being by name, in a document whose very purpose is to decide whether Plaintiff's liberty should be extended. The "Eagan" sentence appears in the section of the 1502-DR that recites the supervisor's individualized analysis of the supervised person. That it references a different person is affirmative documentary evidence that no individualized analysis of Plaintiff occurred.

34. **Internally contradictory treatment and compliance characterizations.** Section II of Exhibit A simultaneously characterizes Plaintiff's parole adjustment as "maintaining compliance with parole supervision" (Noguchi's comment block) while invoking noncompletion of sex-offender treatment as a basis for retention. Under the structurally impossible treatment framework described in Dwyer (Exh. B), "noncompletion" is an automatic output, not an individualized clinical judgment, and therefore cannot supply good cause. The report also reports individual objective scores under Section II of the 1502-DR without aggregating them, without connecting them to the scoring bands printed on the form itself, and without tying them to any individualized good-cause determination.

C. Omission of Mandatory CTM Documentation and Good-Cause Finding

35. Exhibit A contains no CDCR Form 3043 (Rev. 11/24). It contains no signature of any CASOMB-certified treatment provider. It contains no entry reflecting that any CTM was convened. It contains no written, individualized good-cause finding by the Agent of Record, Unit Supervisor, District Administrator, or Administrative Review Officer, as those officers are identified in Section 6 of CDCR Form 3043. The boxes and signature lines on CDCR Form 3043 that correspond to the CTM process are blank, unfilled, or absent. The obsolete CDCR Form 1502-DR (Rev. 01/22) was used in lieu of CDCR Form 3043 (Rev. 11/24), despite the April 17, 2025 regulatory amendments that replaced the prior procedure.

36. On information and belief, the Board of Parole Hearings has never made, entered, or served any written good-cause retention finding with respect to Plaintiff. Under Penal Code section 3001(a)(2), the absence of such a Board finding is alone sufficient to render Plaintiff's continued retention unauthorized.

D. Defendants' Knowledge of Unlawfulness

37. By November 2025, each Defendant had actual or constructive knowledge that the practices applied to Plaintiff had been judicially condemned and legislatively repudiated. In Dwyer (Exh. B, March 20, 2023), a superior court held that CDCR's policy of retaining all registrants in a management program for the entire term of parole, without reference to individual performance, vitiates the Legislature's directive. In Alliance for Constitutional Sex Offense Laws v. Macomber, L.A. Sup. Ct. Case No. 23STCP02378 (Exh. C), the court overruled CDCR's demurrer in December 2023, holding that a petition alleging these statewide practices stated a valid cause of action for ordinary mandate. The resulting litigation produced the April 17, 2025 amendments to 15 C.C.R. § 3574 (made permanent by OAL Matter No. 2025-0321-01 effective April 28, 2025, Exh. D), which expressly allow completion of a sex-offender-management program before discharge, and which add the mandatory CTM and Form 3043 procedure.

38. On information and belief, Parole Administrator Dodd, in her capacity as Northern Region Parole Administrator responsible for SOMP cases, had actual knowledge of the April 2025 regulatory amendments and of the Dwyer and Macomber decisions. On information and belief, Unit Supervisor Noguchi and Parole Agent Rojo, as SOMP-caseload employees of DAPO, had actual or constructive knowledge of the same. On information and belief, non-party Agent Moua, as the Parole Agent who prepared the 1502-DR on November 14, 2025, had actual or constructive knowledge of the same. Defendants (and, through them, CDCR) applied the pre-amendment framework anyway.

E. Nonservice of the Final Decision

39. On and after November 19, 2025, Defendant Rojo was the Agent of Record responsible for serving the finalized 1502-DR on Plaintiff. The CDCR Form 1502-DR's own DISTRIBUTION footer ("Original to C-File; Copy to Field File; Copy to Parolee") identifies Plaintiff as a required recipient, and page 5 of Exhibit A provides dedicated fields for "Parolee

Provided Copy (Date)," "Mailed By Initials," and "Delivered By Initials." Those three fields are each blank. Plaintiff was not served with the finalized report at or after its November 19, 2025 approval by any method—no personal delivery, no mail, no electronic delivery, and no parolee-copy notation in his CDCR file.

40. **How Plaintiff first obtained Exhibit A.** Plaintiff first obtained a copy of the finalized CDCR Form 1502-DR attached hereto as Exhibit A on or about January 2, 2026, when Plaintiff went in person to the Stockton 2 GPS Parole Unit office at 612 Carlton Avenue, Stockton, California 95203, and requested a copy from the Officer of the Day. No CDCR employee, including Defendant Rojo as Agent of Record, served the finalized report on Plaintiff at or before that date by any method. The copy provided to Plaintiff on January 2, 2026 is attached hereto as Exhibit A and has been preserved by Plaintiff in its as-obtained condition.

41. **Prejudice from nonservice.** The nonservice of the finalized discharge-review decision caused concrete prejudice. As a direct result of the nonservice, Plaintiff was unable to invoke any administrative-grievance, appeal, or habeas-corpus remedy within the time limitations that would otherwise apply to challenge the November 19, 2025 denial. The nonservice thereby both perpetuated the unlawful restraint and concealed the existence of the adverse decision from the person most harmed by it.

F. The Nature of Plaintiff's Injuries

42. **Continued unlawful parole supervision.** As a direct and proximate result of Defendants' acts and omissions, Plaintiff has been and continues to be subjected to parole supervision imposing 24-hour-per-day GPS monitoring; a nightly curfew; geographic restrictions; mandatory sex-offender-treatment attendance of approximately six to eight hours per week (including travel); warrantless searches of his person, residence, and vehicle; restrictions on association and employment; and the constant threat of reincarceration for any technical violation.

Every day of continued supervision from November 19, 2025 through the date of judgment is a day of unauthorized restraint.

43. **Loss of liberty (per-diem value).** The restraints described in paragraph 42 are substantial. Plaintiff seeks loss-of-liberty damages of not less than $100 per day from November 19, 2025 through the date of judgment, according to proof at trial. As a legislative reference point, Penal Code section 4904 sets compensation of not less than seventy dollars ($70) per day for certain categories of wrongfully imposed parole supervision in its indemnification framework. Plaintiff does not premise his damages on that framework; he cites it only as an indication that California law recognizes substantial per-diem value for lost liberty. The $100-per-day figure reflects the enhanced restrictions at issue here, including 24-hour-per-day GPS monitoring, curfew, multi-session-per-week mandatory treatment attendance, and warrantless searches.

44. **Documented economic losses—lost CDL wages.** Plaintiff's W-2 records reflect documented lost CDL wages of not less than $109,408 for the years 2022 through 2024, measured against his $72,000 per year but-for earning capacity as a journeyman CDL holder (Exh. E). Losses continue to accrue at approximately $6,000 per month for each month Plaintiff remains unable to pursue unrestricted CDL employment as a direct result of his continued unlawful retention. Economic losses before November 19, 2025 flow from CDCR's continuing breach of its mandatory duty under Penal Code section 3001(a)(2) and 15 C.C.R. § 3574 to discharge Plaintiff absent a lawful good-cause retention finding, which has never existed. Economic losses from and after November 19, 2025 are directly and proximately caused by the individual Defendants' acts and omissions culminating in Dodd's November 19, 2025 ratification of the defective 1502-DR.

45. **Out-of-pocket costs of forced compliance.** Plaintiff has incurred and continues to incur direct out-of-pocket costs as a result of his unlawful supervision, including but not limited to: (a) transportation costs to and from mandatory HOPE treatment sessions (approximately 30

miles round-trip, multiple times per week), at or near the Internal Revenue Service standard mileage rate; (b) the time value of attendance, estimated at six to eight hours per week; (c) polygraph examinations and other mandated assessments; and (d) the costs of maintaining and charging GPS equipment.

46. **Severe emotional distress and reputational harm.** Plaintiff has suffered and continues to suffer severe emotional distress, including pervasive anxiety from continuous GPS monitoring on a fabricated basis, depression, sleep disruption, hypervigilance, fear of reincarceration on procedurally void grounds, humiliation and indignity from being classified as "non-compliant" on a review that identified a different human being by name, and reputational harm from being publicly labeled as having "failed" a treatment program in which completion was structurally unattainable.

G. Continuing-Tort Allegation

47. Each day from November 19, 2025 through the date of judgment is a separate day of unauthorized restraint and a separate breach of the mandatory duties owed to Plaintiff under Penal Code section 3001(a)(2) and 15 C.C.R. § 3574. Each such day gives rise to separate damages. Under the continuing-tort doctrine, the applicable limitations period has not begun to run as to any restraint that is still in effect. (See Watts v. Johnson (2018) 27 Cal.App.5th 734, 744; Aryeh v. Canon Business Solutions, Inc. (2013) 55 Cal.4th 1185, 1197–1201.)

H. Scope of Conduct Challenged

48. CDCR's statewide policies and practices unlawfully extended Plaintiff's parole conditions throughout his supervision term. The *specific* acts challenged in the tort causes of action pleaded below (the Second, Third, and Fourth Causes of Action) are the November 2025 discharge review and Defendant Dodd's November 19, 2025 approval, which made Plaintiff's

continued parole supervision after November 19, 2025 unlawful. The mandatory-duty cause of action (First Cause of Action, against CDCR only) additionally and independently challenges CDCR's continuing failure, since December 2, 2021, to perform the discharge-review procedures mandated by Penal Code section 3001(a)(2) and Title 15, California Code of Regulations section 3574—a continuing breach for which CDCR is liable under Government Code section 815.6. The declaratory-relief cause of action seeks a judicial declaration as to the validity of the November 19, 2025 determination and Plaintiff's corresponding rights.

I. Damages Allocation by Cause of Action

49. To avoid any causation ambiguity, Plaintiff expressly allocates damages by cause of action as follows:

a. **First Cause of Action (Breach of Mandatory Duty, Gov. Code §§ 815.2, 815.6, against CDCR only):** CDCR's continuing breach of its mandatory duties under Penal Code section 3001(a)(2) and Title 15, California Code of Regulations section 3574 commenced on December 2, 2021 (the one-year threshold) and has continued every day since. Under the continuing-accrual doctrine, each day of that breach is separately actionable. (Aryeh v. Canon Business Solutions, Inc. (2013) 55 Cal.4th 1185, 1197–1201.) *Damages on this count include:* (i) documented lost CDL wages of not less than $109,408 for 2022 through 2024; (ii) continuing lost CDL wages of approximately $6,000 per month from January 2025 forward; (iii) out-of-pocket compliance costs from December 2, 2021 forward; and (iv) loss-of-liberty and emotional-distress damages, measured per-diem at not less than $100 per day, from November 19, 2025 forward. Plaintiff also pleads in the alternative, to the extent per-diem loss-of-liberty damages are recoverable on this count for the full period of continuing breach, that the particular injury Penal Code section 3001(a)(2) was designed to prevent is unlawful custodial restraint of persons past the statutory discharge point, such that a per-diem valuation is a direct

measure of the very harm the statute exists to prevent. (Cf. Sullivan v. County of Los Angeles (1974) 12 Cal.3d 710, 720 [damages principles from false imprisonment inform unlawful-detention analysis].) Causation on this count rests on the continuing failure to discharge, not on the November 19, 2025 act.

b. **Second Cause of Action (False Imprisonment, against all Defendants):** The operative wrongful act is Defendant Dodd's November 19, 2025 ratification of the defective 1502-DR, which converted the defective field recommendation into binding state action without lawful privilege. *Damages on this count are limited to harm proximately caused after November 19, 2025*, including: (i) loss of liberty at not less than $100 per day from November 19, 2025 through the date of judgment, according to proof; (ii) post-November 19, 2025 out-of-pocket compliance costs; (iii) post-November 19, 2025 economic losses; and (iv) post-November 19, 2025 emotional-distress damages. Each day of continued restraint from November 19, 2025 forward is a separately actionable occurrence under the continuing-tort doctrine. (Watts v. Johnson (2018) 27 Cal.App.5th 734, 744.)

c. **Third Cause of Action (Intentional Infliction of Emotional Distress, against the named individual Defendants):** The operative conduct is the authoring, ratification, approval, and nonservice of the November 2025 discharge review. *Damages on this count are limited to harm proximately caused from the November 2025 review forward*, including post-November 19, 2025 severe emotional distress, humiliation, and reputational harm, together with punitive and exemplary damages under Civil Code section 3294.

d. **Fourth Cause of Action (Negligence, against the named individual Defendants):** The operative breaches are the ministerial failures in the November 2025 discharge review culminating in Dodd's November 19, 2025 approval. *Damages on this*

count are limited to harm proximately caused from November 19, 2025 forward, including post-November 19, 2025 loss of liberty, post-November 19, 2025 out-of-pocket compliance costs, and post-November 19, 2025 emotional-distress damages.

e. **Fifth Cause of Action (Declaratory Relief):** No monetary damages are sought on this count; Plaintiff seeks only the declarations enumerated in the Prayer for Relief.

50. Plaintiff does not seek double recovery. To the extent any single item of damages is recoverable under more than one count, judgment shall be entered once, and the most favorable count shall control.

FIRST CAUSE OF ACTION

BREACH OF MANDATORY DUTY (Gov. Code §§ 815.2, 815.6)
(Against CDCR)

51. Plaintiff incorporates paragraphs 1 through 50 as though fully set forth herein.

52. **Elements.** The elements of a cause of action under Government Code section 815.6 are: (1) an enactment imposing a mandatory duty on the public entity; (2) the enactment was designed to protect against the kind of injury the plaintiff suffered; (3) breach of the duty; and (4) proximate causation of injury. (Haggis v. City of Los Angeles (2000) 22 Cal.4th 490, 498–499; State of California v. Superior Court (Bodde) (2004) 32 Cal.4th 1234, 1243.) Government Code section 815.2(a) makes a public entity liable for injuries caused by its employees acting within the scope of employment to the extent those employees are personally liable.

53. **Continuing breach since December 2, 2021.** On December 2, 2021, the statutory one-year threshold of Penal Code section 3001(a)(2) was reached. On that date, CDCR became

obligated to discharge Plaintiff unless it recommended retention to the Board of Parole Hearings and the Board, for good cause, determined that he would be retained on parole. CDCR did not discharge Plaintiff on December 2, 2021 or at any time thereafter, and on information and belief the Board of Parole Hearings has never entered any good-cause retention finding with respect to Plaintiff. Each day from December 2, 2021 through the present is a separately actionable breach giving rise to independent damages. The continuing-accrual doctrine governs this count. (Aryeh v. Canon Business Solutions, Inc. (2013) 55 Cal.4th 1185, 1197–1201.) This cause of action does not depend on, and its damages are not limited by reference to, Defendant Dodd's November 19, 2025 approval.

54. **Enactment-by-enactment breach.** The following enactments impose mandatory duties on CDCR and its employees. Each was designed to protect against the particular injury Plaintiff has suffered—continued parole supervision without lawful authority. Each was breached as specified:

a. **Penal Code § 3001(a)(2):** A parolee "who has been on parole continuously for one year since release from confinement ... shall be discharged ... unless the Department of Corrections and Rehabilitation recommends to the Board of Parole Hearings that the person be retained on parole and the board, for good cause, determines that the person will be retained." *Breach:* CDCR has failed to discharge Plaintiff at any time since the one-year threshold was reached on December 2, 2021. On information and belief, the Board of Parole Hearings has never made any good-cause retention finding with respect to Plaintiff.

b. **15 C.C.R. § 3574(e):** CDCR "shall" convene a Containment Team Meeting ("CTM") at specified intervals. *Breach:* No CTM was convened in connection with Plaintiff's November 2025 discharge review, and no CTM record appears in Exhibit A or is reflected on any CDCR Form 3043 for Plaintiff.

c. **15 C.C.R. § 3574(f):** A written, individualized "good cause" determination shall be entered before retention and shall be tied to documented risk assessment rather than to blanket noncompletion of treatment. *Breach:* No written good-cause finding appears anywhere in Exhibit A. The stated justification rests on (i) a fabricated "6.5 years of supervision" rule, (ii) a non-existent "Policy 19-03" exclusion, and (iii) noncompletion of HOPE treatment—which, under CDCR's own blanket policy and as shown in Dwyer, is structurally unattainable and cannot supply good cause.

d. **15 C.C.R. § 3574 (procedure and form):** CDCR Form 3043 (Rev. 11/24) shall be prepared, executed (including, where required, by the treatment provider), and delivered within 30 calendar days of the CTM. *Breach:* No CDCR Form 3043 exists for Plaintiff; the obsolete CDCR Form 1502-DR (Rev. 01/22) was used in its place; no treatment-provider signature appears on any document in Plaintiff's 2025 discharge review; and no 30-day delivery occurred.

e. **15 C.C.R. § 3574(f)(1) (as amended effective April 17, 2025; made permanent OAL Matter No. 2025-0321-01, April 28, 2025):** Treatment completion and parole discharge are "legally separate decisions." *Breach:* CDCR tethered the two impermissibly by citing Plaintiff's non-completion of HOPE as a basis for retention, notwithstanding the amendment's express decoupling of the two determinations.

f. **Government Code § 11340.5:** No state agency shall enforce "any ... rule, regulation, order, or standard of general application ... unless [it] has been adopted as a regulation and filed with the Secretary of State" under the Administrative Procedure Act. *Breach:* CDCR enforced against Plaintiff (i) the "6.5 years of supervision" eligibility rule and (ii) the "Policy 19-03" "10-year parole term" exclusion. Neither has been adopted as a regulation; both are underground regulations.

g. **CDCR's own distribution mandate (printed on every page of CDCR Form 1502-DR and CDCR Form 3043):** "Original to C-File; Copy to Field File; Copy to Parolee." *Breach:* The service fields on page 5 of Exhibit A ("Parolee Provided Copy (Date)," "Mailed By Initials," "Delivered By Initials") are blank. Plaintiff was never served with the finalized report.

55. **Which Defendants committed which breach.** The breaches above were committed as follows: paragraphs 49(a)–(g) are all attributable to CDCR directly under Government Code section 815.6 and vicariously under Government Code section 815.2(a) through its supervisory employees and non-party Parole Agent Long Moua. Paragraphs 49(b)–(f) were personally committed or ratified by the authoring agent, by Defendant Noguchi (ratification on November 19, 2025), and by Defendant Dodd (final approval on November 19, 2025). Paragraph 49(g) was personally committed by Defendant Rojo, who was the Agent of Record responsible for service as of November 19, 2025.

56. **Ministerial, not discretionary.** The duties breached are ministerial. Each enactment uses mandatory "shall" language. Each specifies precise conditions and procedures. None leaves room for the exercise of policy judgment once the statutory conditions are met. Accordingly, the discretionary-immunity defense under Government Code section 820.2 is unavailable. (Haggis, 22 Cal.4th at 498–499; Kavanaugh, 29 Cal.4th at 916.)

57. **Reasonable diligence not exercised.** CDCR did not exercise reasonable diligence. It applied the very practices judicially condemned in Dwyer (March 2023) and continued to use an obsolete form and procedure despite the April 17, 2025 regulatory amendments enacted specifically to correct those deficiencies.

58. **Causation and damages.** As a direct and proximate result, Plaintiff has suffered: (a)

continued parole supervision, including continuous GPS monitoring, geographic restrictions, curfew, mandatory treatment attendance, and warrantless searches; (b) documented economic losses of not less than $109,408 in lost CDL wages for 2022 through 2024 attributable to CDCR's continuing failure to discharge him after December 2, 2021; (c) ongoing wage losses of approximately $6,000 per month; (d) loss of liberty valued at not less than $100 per day from November 19, 2025; (e) out-of-pocket compliance costs; and (f) severe emotional distress. Liability is joint and several as between CDCR (directly under section 815.6 and vicariously under section 815.2) and the individual Defendants (personally under section 820(a) via the Second through Fourth Causes of Action).

SECOND CAUSE OF ACTION

FALSE IMPRISONMENT

(Against All Defendants)

59. Plaintiff incorporates paragraphs 1 through 50 as though fully set forth herein.

60. **Elements.** The elements of false imprisonment are: (1) the nonconsensual, intentional confinement of a person; (2) without lawful privilege; and (3) for an appreciable period of time, however brief. (Fermino v. Fedco, Inc. (1994) 7 Cal.4th 701, 715.) Government Code section 820.4 does not exonerate a public employee from liability for false imprisonment.

61. **Nonconsensual confinement.** Plaintiff did not and does not consent to continued parole supervision beyond the statutory discharge point. Since November 19, 2025, he has been subjected, without consent, to the following concrete restraints: continuous 24-hour-per-day GPS monitoring; a nightly curfew; geographic restrictions; mandatory treatment-attendance obligations consuming six to eight hours per week; warrantless searches of his person, residence, and vehicle; restrictions on association and employment; and the threat of reincarceration for any

technical violation.

62. **Absence of lawful privilege.** The confinement described in paragraph 61 is without lawful privilege. On information and belief, each of the following—any one of which alone suffices to negate privilege—is true: (a) no good-cause retention finding by the Board of Parole Hearings under Penal Code section 3001(a)(2) has been made with respect to Plaintiff, served on him, or provided to him on request; (b) the "6.5 years of supervision" rule relied upon in Exhibit A is an underground regulation prohibited by Government Code section 11340.5; (c) the "Policy 19-03" "10-year parole term" exclusion relied upon in Exhibit A has not been adopted as a regulation under the Administrative Procedure Act and is unenforceable; (d) the report identifies a different parolee by name ("Eagan") and therefore does not document an individualized determination as to Plaintiff—identity verification is a basic ministerial duty (see Sullivan v. County of Los Angeles (1974) 12 Cal.3d 710, 718; Gillan v. City of San Marino (2007) 147 Cal.App.4th 1033, 1044–1045); (e) the mandatory CTM documentation and Form 3043 required by 15 C.C.R. § 3574 are missing from Exhibit A; (f) the obsolete CDCR Form 1502-DR (Rev. 01/22) was used after the April 17, 2025 regulatory amendments requiring Form 3043 (Rev. 11/24); and (g) the decision was not served on Plaintiff, as shown by the blank service fields on page 5 of Exhibit A.

63. **Appreciable period.** Plaintiff has been restrained under the conditions described in paragraph 61 continuously from November 19, 2025 through the date of this complaint, and that restraint continues. Under the continuing-tort doctrine, each day of continued restraint is separately actionable. (Watts v. Johnson, supra, 27 Cal.App.5th at p. 744.)

64. **Legislative reference for per-diem value.** Penal Code section 4904, within its indemnification framework, sets compensation of not less than seventy dollars ($70) per day for certain wrongfully imposed parole supervision. Plaintiff does not proceed under section 4904; he cites it only to show that California law recognizes significant per-diem value for lost liberty. The

specific per-diem value in this case will be proved at trial and in no event less than $100 per day, reflecting the restrictions described in paragraph 61.

65. **Individual Defendants' participation.** Dodd's November 19, 2025 electronic ratification was the single proximate act that converted the defective recommendation into binding administrative action; her signature was the final, sine-qua-non step that extended Plaintiff's constructive custody beyond the point at which Penal Code section 3001(a)(2) required discharge. But for Dodd's approval, the denial would not have become final, and Plaintiff would not have remained subject to continued GPS monitoring, curfew, travel restrictions, mandatory treatment attendance, and the threat of reincarceration after November 19, 2025. Noguchi ratified the defective report, including the "Eagan" reference, in the face of facial defects any reasonable supervisor would have returned for correction. Rojo failed to serve the finalized report, concealing the unlawful restraint from Plaintiff. The non-party authoring agent's fabrications—for which CDCR bears vicarious liability under Government Code section 815.2(a)—supplied the defective foundation upon which the supervisory chain relied. Each named individual Defendant is liable as a participant in the confinement. (Sullivan, supra, 12 Cal.3d at p. 718.)

66. **Damages—limited to post-November 19, 2025 harm.** Damages on this cause of action are limited to harm proximately caused by Defendants' acts on and after November 19, 2025. Those damages include: (a) loss of liberty valued at not less than $100 per day from November 19, 2025 through the date of judgment, according to proof; (b) out-of-pocket costs of forced compliance incurred from November 19, 2025 forward; (c) severe emotional distress suffered from November 19, 2025 forward; and (d) economic losses, including lost CDL wages, proximately caused by the continued restraint from November 19, 2025 forward. Plaintiff does not seek pre-November 19, 2025 damages on this count; such damages are sought separately under the First Cause of Action against CDCR.

THIRD CAUSE OF ACTION

INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

(Against All Individual Defendants)

67. Plaintiff incorporates paragraphs 1 through 50 as though fully set forth herein.

68. **Elements.** The elements of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant; (2) intention to cause, or reckless disregard of the probability of causing, emotional distress; (3) severe emotional distress suffered by the plaintiff; and (4) actual and proximate causation. (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050–1051.) Conduct is particularly likely to be outrageous when directed by an actor with power to affect the plaintiff's interests, such as a custodial official. (Alcorn v. Anbro Engineering, Inc. (1970) 2 Cal.3d 493, 498–499.)

69. **Extreme and outrageous conduct—the Eagan error.** Unit Supervisor Noguchi personally typed, reviewed, and electronically signed a recommendation that determined Plaintiff's continued loss of liberty, but the recommendation's own supervisor-comment sentence identifies a different human being—"Eagan"—by name. Confining a person based on a document that does not attempt to refer to that person is extreme and outrageous conduct by an actor with custodial authority. It demonstrates, by documentary proof, that the review was not individualized, that the deprivation of liberty was arbitrary, and that Plaintiff was treated not as an individual but as a bureaucratic placeholder whose freedom was decided through a template.

70. **Additional extreme and outrageous conduct.** In addition to the Eagan error, Defendants: (a) relied on a 6.5-year supervision rule that appears nowhere in any statute or regulation; (b) invoked a "Policy 19-03" "10-year parole term" exclusion that appears in no published version of Policy 19-03; (c) applied mutually exclusive parole-term frameworks to the same person; (d) continued using a framework judicially condemned in Dwyer more than two and

a half years earlier and repudiated by regulatory amendment seven months earlier; (e) withheld notice from Plaintiff in order to foreclose any meaningful opportunity to contest the adverse decision; and (f) adopted a non-completion characterization of treatment that is the automatic output of a blanket-retention policy rather than an individualized clinical judgment.

71. **Intent/reckless disregard.** Each individual Defendant acted with, at minimum, reckless disregard of the probability of causing severe emotional distress. By November 2025, Dwyer, Macomber, and the April 2025 regulatory amendments supplied cumulative, escalating notice that these practices were unlawful. Dodd's approval of a facially defective report as the Northern Region Parole Administrator responsible for SOMP cases supports an inference of either actual knowledge or reckless disregard. Noguchi's insertion of the "Eagan" reference into a document signed electronically under his own name supports the same inference.

72. **Severe distress.** Plaintiff has suffered severe emotional distress as described in paragraph 46 above, including anxiety, depression, sleep disruption, hypervigilance, fear, humiliation, and reputational harm. Damages on this count are limited to severe emotional distress proximately caused from the November 2025 review forward; Plaintiff does not seek pre-November 2025 emotional-distress damages on this count.

73. **Punitive damages.** The conduct of the named individual Defendants constitutes oppression and malice within the meaning of Civil Code section 3294. Noguchi's ratification of a report that identifies a different parolee by name—and Dodd's subsequent final approval of that report—demonstrates conscious disregard of Plaintiff's rights and safety. Rojo's failure to serve the decision was, on information and belief, deliberate and designed to foreclose administrative and judicial review. No reasonable administrator could believe that depriving a person of liberty based on (a) a document that identifies someone else, (b) an eligibility rule that does not exist, and (c) no service on the affected individual is lawful. Punitive damages are sought only against the named individual Defendants (Dodd, Noguchi, and Rojo), not against CDCR. (Gov. Code §

818.)

FOURTH CAUSE OF ACTION

NEGLIGENCE

(Against All Individual Defendants)

74. Plaintiff incorporates paragraphs 1 through 50 as though fully set forth herein.

75. **Duty.** Each individual Defendant owed Plaintiff a duty of care arising from: (a) the custodial authority exercised over him as a parolee; (b) the mandatory, ministerial duties imposed by Penal Code sections 3000, 3001, and 3008, and by 15 C.C.R. § 3574; and (c) the general duty of reasonable care owed under Government Code section 820(a). Dodd owed particularized duties as the final approving official: the duty to ensure regional discharge decisions comply with the governing statutes and regulations; the duty to reject or remand any review that relies on non-enacted eligibility criteria, misidentifies the supervised person, or omits mandatory forms and findings; the duty to implement the April 2025 regulatory amendments in all Northern Region SOMP cases; and the duty to perform a meaningful individualized review before signing a document extending the State's jurisdiction over a person's liberty.

76. **Breach.** Each named individual Defendant breached the duty of care. Noguchi ratified a report identifying a different person by name ("Eagan"), relying on fabricated eligibility criteria (the non-existent 6.5-year rule and "Policy 19-03" exclusion), internally contradicting itself as to compliance, using an obsolete form, omitting CTM and Form 3043 documentation, and reflecting no aggregation of mandatory objective scoring—all without independent verification or correction. Dodd approved that facially defective report as the final administrative gatekeeper; any reasonable administrator would have remanded it. Rojo failed to serve the decision on Plaintiff. Each breach was a ministerial failure, not a discretionary policy choice. CDCR

additionally bears vicarious liability under Government Code section 815.2(a) for the breaches of duty by its non-party authoring agent.

77. **Causation.** Each breach was a substantial factor in causing Plaintiff's injuries. A reasonable parole agent, supervisor, or administrator in each Defendant's position would have recognized that the defects in the discharge review created a foreseeable risk of prolonged unlawful supervision and resulting harm.

78. **Damages—limited to post-November 19, 2025 harm.** As a direct and proximate result of the individual Defendants' breaches, Plaintiff has suffered, from and after November 19, 2025, loss of liberty, out-of-pocket costs of forced compliance, economic losses proximately caused by the continued restraint, and severe emotional distress. Plaintiff does not seek pre-November 19, 2025 damages on this count; such damages are sought separately under the First Cause of Action against CDCR.

FIFTH CAUSE OF ACTION

DECLARATORY RELIEF (Code Civ. Proc. § 1060)
(Against CDCR)

79. Plaintiff incorporates paragraphs 1 through 50 as though fully set forth herein.

80. **Actual controversy.** An actual, present, and justiciable controversy exists between Plaintiff and CDCR concerning: (a) whether the November 19, 2025 discharge-review determination reflected in Exhibit A is valid as a matter of law; (b) whether the "6.5 years of supervision" rule applied to Plaintiff is a properly adopted regulation or an underground regulation prohibited by Government Code section 11340.5; (c) whether the "Policy 19-03" "10-year parole term" exclusion applied to Plaintiff is a properly adopted regulation or an

underground regulation prohibited by Government Code section 11340.5; (d) whether CDCR may, consistent with Penal Code section 3001(a)(2) and 15 C.C.R. § 3574, retain Plaintiff on parole without a Board of Parole Hearings good-cause determination documented in a CDCR Form 3043 (Rev. 11/24) and served on Plaintiff; and (e) whether Plaintiff is entitled to have CDCR conduct a lawful discharge review consistent with the April 17, 2025 amendments before any further denial of discharge.

81. **Requested declaration.** Plaintiff seeks a judicial declaration that:

a. The November 19, 2025 discharge-review determination is void because it rests on an underground regulation, applies mutually exclusive parole-term frameworks, identifies a different parolee by name, omits mandatory CTM and Form 3043 documentation, lacks any Board of Parole Hearings good-cause determination, and was never served on Plaintiff;

b. The "6.5 years of supervision" rule applied to Plaintiff is an underground regulation prohibited by Government Code section 11340.5 and is unenforceable against Plaintiff;

c. The "Policy 19-03" "10-year parole term" exclusion applied to Plaintiff is an underground regulation prohibited by Government Code section 11340.5 and is unenforceable against Plaintiff;

d. Plaintiff's continued parole supervision from November 19, 2025 forward is unauthorized and unlawful; and

e. Plaintiff is entitled to a lawful discharge review in full compliance with Penal Code sections 3000, 3001, and 3008, and 15 C.C.R. § 3574, with service on Plaintiff and

an opportunity to be heard, before any further retention of Plaintiff on parole.

82. **Necessity and propriety.** A judicial declaration is necessary and proper to resolve the controversy, to avoid multiplicity of actions, and to establish the rights and obligations of the parties with respect to Plaintiff's continued parole supervision. Declaratory relief is particularly appropriate here because the defective discharge-review determination is the immediate cause of Plaintiff's continuing loss of liberty and economic harm, and because the underlying statewide policies have already been held to state a valid cause of action for mandate in Alliance for Constitutional Sex Offense Laws v. Macomber.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully prays for judgment in his favor and against Defendants, and each of them, as follows:

A. Economic Damages

1. **Against CDCR on the First Cause of Action (continuing breach since December 2, 2021):** lost CDL wages (as reflected in Plaintiff's W-2 records and the Centerline Drivers Wage Notice attached as Exhibit E, and in no event less than $109,408 for the years 2022 through 2024), continuing lost CDL wages, out-of-pocket compliance costs, and related economic losses, all according to proof at trial;

2. **Against all Defendants on the Second and Fourth Causes of Action (limited to harm accruing on and after November 19, 2025):** lost CDL wages, out-of-pocket compliance costs, and related economic losses, according to proof at trial;

3. All other past and future economic losses according to proof at trial, subject to

the count-by-count allocation set forth in paragraph 49 above.

B. Non-Economic Damages

1. Loss of liberty from continued parole supervision, valued at not less than $100 per day, from November 19, 2025 through the date of judgment. Plaintiff pleads in the alternative that, because the particular injury Penal Code section 3001(a)(2) was designed to prevent is unlawful custodial restraint of persons past the statutory discharge point, a per-diem measure of loss-of-liberty damages on the First Cause of Action against CDCR is proper for the full period of continuing breach from December 2, 2021 through the date of judgment—according to proof at trial;

2. Severe emotional distress, humiliation, and reputational harm, according to proof at trial;

3. All other past and future non-economic damages according to proof at trial.

C. Punitive and Exemplary Damages

1. Punitive and exemplary damages against each named individual Defendant (Dodd, Noguchi, and Rojo) in his or her individual capacity in an amount sufficient to punish and deter, pursuant to Civil Code section 3294, based on conscious disregard of Plaintiff's rights, including without limitation: Noguchi's ratification of a report that identified a different parolee by name and that relied on the fabricated 6.5-year rule and non-existent "Policy 19-03" exclusion; Dodd's final approval of that report despite facial defects; and Rojo's failure to serve the decision. Punitive damages are sought only against the named individual Defendants, not against CDCR. (Gov. Code § 818.)

D. Declaratory Relief

1. A judgment declaring that the CDCR Form 1502-DR Discharge Review Report dated November 14, 2025, as ratified on November 19, 2025 by Defendant Noguchi and approved on November 19, 2025 by Defendant Dodd, is void as a matter of law and without legal effect;

2. A judgment declaring that the "6.5 years of supervision" eligibility rule applied to Plaintiff is an underground regulation prohibited by Government Code section 11340.5 and is unenforceable against Plaintiff;

3. A judgment declaring that the "Policy 19-03" "10-year parole term" exclusion applied to Plaintiff is an underground regulation prohibited by Government Code section 11340.5 and is unenforceable against Plaintiff;

4. A judgment declaring that Plaintiff's continued parole supervision from November 19, 2025 forward is unauthorized and unlawful; and

5. A judgment declaring that Plaintiff is entitled to discharge from parole unless and until (a) a discharge review is lawfully conducted in full compliance with Penal Code sections 3000, 3001, and 3008, and Title 15, California Code of Regulations section 3574 (including a properly convened Containment Team Meeting documented on CDCR Form 3043 (Rev. 11/24), a treatment-provider signature where required, and service on Plaintiff); and (b) a written good-cause retention finding is entered by the Board of Parole Hearings under Penal Code section 3001(a)(2).

E. Other Relief

1. Costs of suit incurred herein;

2. Pre-judgment and post-judgment interest as permitted by law, including under Civil Code section 3287 and any applicable provisions of the Government Code;

3. Such other and further relief as this Court deems just and proper.

ELECTION OF TRIAL BY COURT

Plaintiff does not demand a jury trial and elects trial by the court on all issues so triable. (Cal. Const., art. I, § 16; Code Civ. Proc. § 631.)

Dated: June 15, 2026

_____

BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

VERIFICATION

I, BRENDAN NGEHSI NEWANFORBI, am the Plaintiff in the above-entitled action. I have read the foregoing Verified Complaint for Damages and Declaratory Relief and know its contents. The matters stated therein are true of my own knowledge, except as to those matters stated on information and belief, and as to those matters I believe them to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on June 15, 2026,

at Stockton, California.

_____

BRENDAN NGEHSI NEWANFORBI

INDEX OF EXHIBITS

Exhibit A — CDCR Form 1502-DR Discharge Review Report dated November 14, 2025 (ratified by Unit Supervisor Gary Noguchi on November 19, 2025; approved by Parole Administrator Keely Dodd on November 19, 2025).

Exhibit B — In re Frederick Dwyer, San Mateo County Superior Court Case No. SC-080355A, HC-3020, Order dated March 20, 2023.

Exhibit C — Alliance for Constitutional Sex Offense Laws v. Macomber, Los Angeles County Superior Court Case No. 23STCP02378, Petition for Writ of Mandate (July 10, 2023) and Order Overruling Demurrer (December 2023).

Exhibit D — State of California Office of Administrative Law, Amended Notice of Approval of Certificate of Compliance, Title 15, California Code of Regulations section 3574 (OAL Matter No. 2025-0321-01, effective April 28, 2025).

Exhibit E — Centerline Drivers Wage Notice dated October 30, 2024 (Plaintiff's CDL qualification and pay rates).

Exhibit F — Verified Government Tort Claim presented April 23, 2026 to the California Government Claims Program, together with the Government Claims Online Filing Fee Receipt dated April 23, 2026 (Confirmation Number 26042324436661).